

HOUSE No. 800

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act assuring that polling places are accessible to elderly and physically challenged voters.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/9/2025</i>

HOUSE No. 800

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 800) of Bruce J. Ayers for legislation to ensure that polling places are accessible to handicapped and elderly voters. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 657 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act assuring that polling places are accessible to elderly and physically challenged voters.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws is hereby amended by inserting after
2 section 35W the following new section:—

3 Section 35X. There is hereby established on the books of the commonwealth a separate
4 fund known as the Polling Location Accessibility Fund, to promote improved involvement in the
5 electoral process by physically-challenged and elderly individuals. Said fund shall consist of all
6 monies appropriated therefore in each fiscal year and any funds donated to the commonwealth
7 and designated for this purpose. All monies appropriated to said fund shall be made available for
8 distribution upon appropriation.

9 All revenues credited under this section shall remain in said Polling Location
10 Accessibility Fund to assist cities and towns of the commonwealth in paying all or part of any
11 costs associated with local initiatives to improve the physical condition of polling locations that
12 may contain obstacles to access, or impediments to movement for elderly and physically-
13 challenged residents wishing to vote. Said fund may also be distributed to fund all or part of the
14 costs associated with programs designed to increase the number of overall percentage of elderly
15 and physically-challenged voters casting ballots at a state or federal election. All grants from this
16 fund shall be made on a competitive basis pursuant to rules and regulations published by the
17 office of the state secretary and all monetary awards shall be granted only at the discretion of the
18 state secretary.

19 The state treasurer shall deposit the fund in such a manner that will secure the highest
20 interest rate available consistent with the safety of the fund and the requirement that all amounts
21 on deposit be available for immediate withdrawal. All monies appropriated to said fund but
22 unexpended at the close of the fiscal year shall not revert to the general fund but shall remain
23 designated within said fund and be available for expenditure in subsequent fiscal years for use
24 consistent with this section. The fund shall be expended only for the purposes herein stated at the
25 direction of the state secretary.

26 SECTION 2. Chapter 54 of the General Laws is hereby amended by inserting after
27 section 10 the following new section: —Section 10A: The state secretary is hereby authorized
28 and directed to establish a grant program for the purpose of assisting cities and towns in paying
29 all or part of any costs associated with local initiatives to improve the physical condition of
30 polling locations that may contain obstacles to access, or impediments to movement for elderly
31 and physically-challenged residents wishing to vote. Grants made pursuant to this section shall

32 include but not be limited to the substantial alteration and remodeling of a polling location for
33 the specific purpose of better accommodating elderly and physically-challenged residents
34 exercising their right to vote on election day. The state secretary may also make grants to
35 increase the number or overall percentage of elderly and physically-challenged voters casting
36 ballots at a state or federal election. All grants from this fund shall be made on a competitive
37 basis pursuant to rules and regulations published by the office of the state secretary and all
38 monetary awards shall be granted only at the discretion of the state secretary subject to available
39 appropriations in the Polling Location Accessibility Fund established pursuant to section 35R of
40 chapter 10 of the General Laws.